

SENATE No. 196

The Commonwealth of Massachusetts

PRESENTED BY:

Cynthia Stone Creem

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing consumers with equal protection for all real estate appraisals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Cynthia Stone Creem</i>	<i>Norfolk and Middlesex</i>	
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>3/27/2025</i>

SENATE No. 196

By Ms. Creem, a petition (accompanied by bill, Senate, No. 196) of Cynthia Stone Creem for legislation to provide consumers with equal protection for all real estate appraisals. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2550 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing consumers with equal protection for all real estate appraisals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 173 of chapter 112 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “Certified appraisal or
3 certified appraisal report” the following definition:-

4 “Evaluation”, an estimate of the value of real property, made in accordance with the
5 Interagency Appraisal and Evaluation Guidelines, for use in a real estate-related financial
6 transaction for which an appraisal is not required by federal law.

7 SECTION 2. Subsection A of section 174 of said chapter 112, as so appearing, is hereby
8 amended by striking out the second sentence and inserting in place thereof the following
9 sentence:-

10 Except to the extent permitted under subsections B and C, a person who has not obtained
11 a real estate appraisal license or certification under this chapter shall not prepare, for a fee or
12 other consideration, an appraisal or appraisal report relating to real estate or real property in the
13 commonwealth.

14 SECTION 3. Said section 174 of said chapter 112, as so appearing, is hereby further
15 amended by striking out subsection C and inserting in place thereof the following subsection:-

16 C. Sections 173 to 195, inclusive, shall not apply to a person engaged by a financial
17 institution to perform an evaluation. When providing an evaluation, a licensed or certified real
18 estate appraiser is not required to comply with the Uniform Standards of Professional Appraisal
19 Practice. An evaluation by a real estate appraiser who is licensed or certified in the
20 commonwealth under this subsection shall contain a disclosure that the evaluation is not an
21 appraisal and is not required to comply with the Uniform Standards of Professional Appraisal
22 Practice.